

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE SHAHID BILAL HASSAN
MR. JUSTICE SHAKEEL AHMAD

Crl. P.L.A. No. 449-L/2026

[Against order dated 06-04-2026 passed by the Lahore High Court, Lahore, in Crl. Misc. No. 15394-B of 2026]

Muhammad Iqbal

...Petitioner(s)

Versus

The State etc.

...Respondent(s)

For the Petitioner(s): : M. Abid Hussain Saqi, ASC.

For the Respondent(s): : Barrister Syed Sajjad Haider Rizvi,
Assistant Attorney General for
Pakistan a/w Kamran Zeeshan,
SI/SHO, FIA.

Date of Hearing : 03.06.2026

ORDER

SHAHID BILAL HASSAN, J- Through this petition, the petitioner seeks leave to appeal against order dated 06.04.2026 passed by the learned Lahore High Court, Lahore whereby his post-arrest bail petition, filed on the statutory ground of delay in conclusion of trial, was dismissed in case FIR No.01/2025 dated 01.01.2025 registered at FIA Anti-Money Laundering Circle, District Lahore Zone for offences under sections 3 and 4 of the Anti-Money Laundering Act, 2010.

2. As per crime report, the petitioner is the recipient of funds allegedly remitted by his son Muhammad Hammas Ali, who is stated to be involved in facilitating and aiding the illegal transportation of Pakistani nationals across international borders.

3. Learned counsel for the petitioner submits that the petitioner seeks indulgence of this Court solely on the statutory ground of delay in conclusion of trial contemplated by the third proviso to section 497(1) of The Code of Criminal Procedure, 1898 ("**Cr.P.C.**"). Further submits that the petitioner is behind the gallows from the

date of his arrest on 02.02.2025; challan has been submitted and charge has been framed, yet not a single prosecution witness has been examined. Learned counsel contends that a careful examination of the order-sheet reveals that, except for one adjournment sought for submission of power of attorney, no delay whatsoever is attributable to the petitioner or any person acting on his behalf. Placing reliance upon Shakeel Shah v. The State (2022 SCMR 1) and Nadeem Samson v. The State (PLD 2022 SC 112), he submits that the petitioner's statutory right cannot be defeated in the absence of any act or omission attributable to him.

4. Conversely, learned Assistant Attorney General for Pakistan submits that the allegations against the petitioner are grave in nature and pertain to offences under the Anti-Money Laundering Act, 2010. According to the prosecution case, the petitioner is the recipient of funds allegedly remitted by his son, who is stated to be involved in facilitating and aiding the illegal transportation of Pakistani nationals across international borders. Further contends that the petitioner's financial dealings are directly connected with the proceeds generated through the predicate offence and, therefore, his involvement in the commission of the alleged offences is clearly discernible from the record. He accordingly argues that keeping in view the seriousness of the allegations and the petitioner's alleged role in the offence, no case for grant of bail is made out.

5. We have heard the learned counsel for the parties at length and have examined the record with their able assistance.

6. At the outset, it is admitted that the petitioner was arrested on 02.02.2025. The challan has admittedly been submitted and charge has already been framed. However, despite lapse of considerable time after commencement of trial, not a single prosecution witness has been examined. The learned High Court declined relief primarily on the ground that one of the co-accused was absconding and, therefore, the delay in conclusion of trial could not be attributed to the prosecution.

7. The law governing bail on the statutory ground of delay in conclusion of trial now stands authoritatively settled by this Court in Shakeel Shah v. The State (2022 SCMR 1), Nadeem Samson v. The State (PLD 2022 SC 112), Adnan Shafai v. The State (2024

SCMR 1543), Mehran v. Ubaid Ullah and others (**PLD 2024 SC 843**) and Noor Agha v. The State (**2025 SCMR 1679**). The consistent view emerging from these judgments is that the third proviso to section 497(1), Cr.P.C. confers a substantive statutory right upon an accused where the trial is not concluded within the prescribed period, subject only to the exceptions expressly provided in the third and fourth provisos. It has further been held that an act or omission attributable to the accused must disclose a visible and concerted effort to obstruct or delay the trial. Mere adjournments or isolated procedural requests do not by themselves disentitle an accused from claiming the benefit of the proviso.

8. We have carefully examined the order-sheet of the trial proceedings. Except for a single adjournment sought by learned defence counsel for submission of power of attorney, no delay has been occasioned by the petitioner or by any person acting on his behalf, rather the proceedings reveal that it was the prosecution which delayed the conclusion of trial Court, because prosecution witnesses were not produced, the learned Presiding Officer was on leave or attending official training, or the prosecutor was unavailable due to official engagements. The prosecution has thus failed to point out any conduct on the part of the petitioner reflecting a design or pattern intended to delay the conclusion of the trial.

9. Equally significant is the fact that the principal reason assigned by the learned High Court for refusing bail was the abscondence of a co-accused. Such reasoning cannot be sustained in view of the law laid down by this Court in Noor Agha v. The State (**2025 SCMR 1679**) wherein it was categorically held that delay occasioned by a co-accused cannot be attributed to the accused seeking bail unless the prosecution establishes, on the basis of undisputed facts, that the accused was complicit in the conduct causing such delay. No such material has been brought on record in the present case.

10. We are also unable to agree with the observation of the learned High Court that the petitioner's alleged involvement in the offence is sufficient to deny statutory bail. Once the conditions prescribed by the third proviso stand satisfied and none of the statutory exceptions are attracted, the accused becomes entitled to bail as a matter of right and not as a matter of grace. The gravity of

the allegation cannot, by itself, defeat a right expressly conferred by a statute.

11. The reliance placed by the learned High Court on Muhammad Jahangir Badar v. The State (PLD 2003 SC 525) is misconceived in the peculiar facts of the present case. The subsequent authoritative pronouncements of this Court in Shakeel Shah (ibid), Nadeem Samson (ibid), Adnan Shafai (ibid) and Noor Agha (ibid) have comprehensively explained the scope of the third proviso to section 497(1), Cr.P.C. and make it abundantly clear that where the delay is not attributable to the accused, the statutory right cannot be denied merely on the expectation that the trial may conclude expeditiously in future.

12. For the foregoing reasons, we are satisfied that the delay in conclusion of the trial has not been occasioned by any act or omission of the petitioner or any person acting on his behalf. Nor has the prosecution shown that any of the exceptions contained in the fourth proviso to section 497(1), Cr.P.C. are attracted. The petitioner has, therefore, succeeded in making out a case for grant of post-arrest bail on the statutory ground of delay in conclusion of trial.

13. Consequently, this petition is converted into an appeal and the same is allowed. The impugned order dated 06.04.2026 passed by the learned Lahore High Court, Lahore is set aside and the petitioner is admitted to post-arrest bail subject to his furnishing bail bonds in the sum of Rs.500,000/- with two sureties in the like amount to the satisfaction of the learned trial Court.

14. Before parting with this order, it is however, made clear that the findings recorded hereinabove are tentative in nature and would have no bearing upon trial Court of the case, which would proceed in accordance with law.

JUDGE

JUDGE

Lahore, the
3rd of June, 2026
"Approved for Reporting"
M.A.Hassan